

Rajendra Singh v. State of U.P.

Allahabad High Court · Division Bench · 10 August 2022 · Writ-C No. 22069 of 2022 · WRIT - C No. 22069 of 2022 · **Writ disposed; petitioner relegated to clause 6.8 objection with stay.**

HEADNOTE

Without examining a distribution-company recovery notice on merits, the High Court disposed of the writ by granting liberty to file an objection under clause 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound disposal after hearing and staying coercive action for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Rajendra Singh approached the Allahabad High Court seeking certiorari to quash a recovery notice dated 20 September 2021 issued by the U.P. Power Corporation and a mandamus directing the licensee to decide his representation dated 6 December 2021 after furnishing the assessment letter. Counsel for the distribution company stated on instructions that the petitioner could file an objection to the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

clause 6.8 objection as alternate remedy against recovery demand

HOLDING

Without expressing any opinion on merits, the writ challenging a recovery notice is disposed of with liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so submitted, the licensee shall decide it in accordance with law, preferably within the next four weeks, after affording a reasonable opportunity of hearing. Coercive action on the impugned demand is stayed for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Court declined merits review of the recovery notice and relegated the consumer to the statutory objection under clause 6.8. ¶ 1

para-6.8-objection-alternate-remedy Liberty was granted to file a clause 6.8 objection to the impugned demand, to be decided in accordance with law after hearing. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The licensee was directed to decide the 6.8 objection within a time-bound period after hearing, with a stay of coercive recovery for eight weeks or until disposal. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE RECOVERY NOTICE DATED 20.09.2021 AND THE UNDERLYING ASSESSMENT

The Court expressly declined to express any opinion on the merits. ¶ 1